

HOUSE No. 466

The Commonwealth of Massachusetts

PRESENTED BY:

Todd M. Smola and Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Palmer to grant additional licenses for the sale of all alcoholic beverages.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>1/16/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>1/17/2025</i>

HOUSE No. 466

By Representative Smola of Warren and Senator Oliveira, a joint petition (accompanied by bill, House, No. 466) of Todd M. Smola and Jacob R. Oliveira (by vote of the town) that the town of Palmer be authorized to issue five additional licenses for the sale of all alcoholic beverages to be drunk on the premises and one additional license for the sale of all alcoholic beverages not to be drunk on the premise in said town. Consumer Protection and Professional Licensure. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4688 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Palmer to grant additional licenses for the sale of all alcoholic beverages.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Palmer may grant 5 additional licenses for the sale of all
3 alcoholic beverages as follows: (i) 1 license for the sale of all alcoholic beverages to be drunk on
4 the premises pursuant to section 12 of said chapter 138 to Tables at the Farm located at 3092
5 Palmer St, and 1 license for the sale of all alcoholic beverages to be drunk on the premises
6 pursuant to said section 12 of said chapter 138 to Don Juans Cantina Palmer LLC located at 1519
7 N. Main St, and 1 license for the sale of all alcoholic beverages to be drunk on the premises
8 pursuant to said section 12 of said chapter 138 to a New Restaurant Establishment located at

2054 Bridge St.; and (ii) 1 license for the sale of all alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to Lukes' located at 1478 N. Main St, and 1 license for the sale of all alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to Jane Alden convenience Store located at 1469 N. Main St. The licenses granted under this section shall be subject to all of the said chapter 138 except said section 17.

(b) A license granted under clause (i) of subsection (a) of this section shall only be exercised in the dining room of a common victualler and other public rooms or areas considered reasonable and appropriate by the licensing authority as certified in writing.

(c) The licensing authority shall not approve the transfer of a license granted pursuant to this section to any other location, but it may grant the license to a new applicant at the same location if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(d) If a licensee terminates or fails to renew a license granted under this section or any such license is cancelled, revoked or no longer in use, it shall be returned physically, with all legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may, within 3 years after such return, then grant the license to a new applicant at the same location under the same conditions as specified in this section, otherwise such license shall dissolve.

(e) A license granted under this section shall be issued within 1 year after the effective date of this act; provided, however, that a license originally granted within that time period may be granted to a new applicant under subsections (c) and (d) thereafter.

SECTION 2. Upon issuance of the license authorized in clause (ii) of subsection (a) of section 1, the licensee shall return physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority, its license for the sale of wine and malt beverages not to be drunk on the premises under section 15 of chapter 138.

SECTION 3. This act shall take effect upon its passage.